CHAPTER 70 Law Commission of India

The Law Commission of India is a non-statutory advisory body. It is established by the order of the Central Government[1] from time to time for a fixed tenure. Its function is to recommend legislative measures for the purpose of consolidation and codification of laws. However, its recommendations are not binding on the government.

Historical Background

During the British regime, four Law Commissions were established in the 19th century. They made a significant contribution towards the enrichment of the Indian Statute Book. They recommended a variety of legislations on the pattern of the then prevailing English laws adopted to Indian conditions. The Indian Penal Code, the Criminal Procedure Code, the Civil Procedure Code, the Indian Contract Act, the Indian Evidence Act, the Transfer of Property Act and some other laws are the products of these four Commissions.

The names of these Commissions, the years in which they were constituted and the names of their Chairmen are mentioned in Table 70.1.

Commissions Constituted So Far

After Independence, the Constitution of India with separate chapters on Fundamental Rights and Directive Principles of State Policy gave a new direction to law reform in the country. Article 372 of the Constitution provides that the pre-Constitution laws shall remain in force until they are amended or repealed. However, there had been demands in Parliament and outside for the establishment of a new Law Commission to recommend the revision and updation of the outmoded and outdated laws to serve the changing needs of the nation. The Government reacted favourably to this demand and established the First Law Commission of independent India in 1955. The term of this Commission was three years and it was headed by MC Setalvad, the then Attorney-General of India.

Table 70.1 Pre-independence Law Commissions

Name	Establishment Year	Chairman
First Law Commission	1834	Lord Macaulay
Second Law Commission	1853	Sir John Romilly
Third Law Commission	1861	Sir John Romilly
Fourth Law Commission	1879	Dr Whitney Stokes

Table 70.2 Law Commissions Appointed so far